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Case Number: 24STCV24159 Hearing Date: August 5, 2026 Dept: 224

Lara Kusez v. Tacori Enterprises

TENTATIVE RULING

Cross-Complainant Tacori Enterprises' Motion for Leave to File a First Amended Cross-Complaint is GRANTED IN PART. Cross-Complainant is ordered to file a First Amended Cross-Complaint consistent with this Order (omitting the third and fourth causes of action) within 10 days of this ruling.

ANALYSIS

I. INTRODUCTION

Plaintiffs Lara Kusez aka Lara Ghraoui and Kari Riley (Plaintiffs) filed this action on September 18, 2024 against defendant Tacori Enterprises (Tacori), asserting claims for nonpayment of wages and waiting time penalties.

Plaintiffs allege they are models who performed work for Tacori at a photo shoot on April 11, 2023 (Photo Shoot). Plaintiffs contend Tacori failed to pay them for more than 30 days after their next regular payday following the Photo Shoot, which fell on April 26, 2023. Each plaintiff claims she is entitled to \$210,000.00 in waiting time penalties: the \$7,000.00 in wages owed, multiplied by the 30 days during which Tacori failed to pay.

On December 2, 2024, Tacori cross-complained against Plaintiffs and against their talent agents: Elite Model Management LLC; Elite Model Management LA, LLC; 1 Model Management, LLC; and 1 Model Management LA LLC (together "the Agencies"). Tacori also names as cross-defendant Su Mustecaplioglu, an individual ("Su"), whom Tacori alleges agreed to "arrange and pay for models" for the Photo Shoot and to whom Tacori "remitted payment ... on April 25, 2023, pursuant to an invoice". (Cross-Compl., ¶¶ 18-19.)

Tacori's cross-complaint asserts claims for (1) declaratory relief (against Plaintiffs), (2) breach of contract (against Su), (3) equitable indemnity (against Su and the Agencies) and (4) contribution (against Su and the Agencies).

Plaintiffs added Su to their complaint by fictitious name amendment on February 11, 2025.

On September 9, 2025, Elite Model Management LLC and Elite Model Management LA, LLC (together “Elite”) demurred to Tacori’s third and fourth causes of action. Elite argued it could not be held liable for indemnity or contribution because it cannot be treated as Plaintiffs’ employer as a matter of law, and therefore cannot share wage-and-hour liability with Tacori as Tacori contends.

On November 14, 2025, 1 Model Management LLC and 1 Model Management LA, LLC (together “One Model”) demurred to the same causes of action on the same grounds.

The Court sustained Elite’s demurrer on April 24, 2026, without leave to amend, but without prejudice for Tacori to seek leave to file an amended cross-complaint identifying a colorable theory of relief against Elite.

On May 27, 2026, Tacori moved for leave to file a First Amended Cross-Complaint (FAXC). The proposed FAXC (1) omits Elite Model Management LA, LLC and 1 Model Management LA, LLC from the third and fourth causes of action, while maintaining the causes of action against Elite Model Management, LLC and 1 Model Management, LLC; (2) adds a fifth cause of action for breach of the implied covenant of good faith and fair dealing against Su and all four Agencies; and (3) adds a sixth cause of action for negligence against all four Agencies.

One Model’s demurrer and Tacori’s motion for leave to amend are now both before the Court.

Tacori opposes One Model’s demurrer, and One Model opposes Tacori’s motion for leave to amend.

II. ONE MODEL’S DEMURRER TO CROSS-COMPLAINT

One Model’s demurrer to Tacori’s initial cross-complaint is sustained on the same terms as Elite’s functionally-identical demurrer heard on April 24, 2026.

The allegations levied against One Model and Elite in the cross-complaint are the same, and One Model’s challenge is based on the same ground as Elite’s: that One Model is a talent agency, not Plaintiffs’ employer, and may not be held liable for indemnity or contribution based on Tacori’s employment-based wage-and-hour obligations.

The Court incorporates the reasoning in its April 24, 2026 Order by reference and sustains the demurrer without leave to amend, but without prejudice for Tacori to seek leave to amend – which it has done, and which motion is discussed below.

III. TACORI’S MOTION FOR LEAVE TO FILE A FIRST AMENDED CROSS-COMPLAINT

A. Legal Standard

A party may file an amended pleading once without leave of the court at any time before a demurrer or motion to strike is filed, or after a demurrer or motion to strike is filed as long as it is served no later than the date for filing an opposition to the demurrer or motion to strike. (Code Civ. Proc., §§ 472(a), 430.40(a).) Outside that timeframe, a party must obtain leave of the court to amend its pleading. (Code Civ. Proc., § 473, subd. (a)(1).)

The court may grant leave to amend a pleading, in its discretion, “upon any terms as may be just,” if it finds that permitting the amendment would be “in furtherance of justice,” and that the adverse party was noticed. (Ibid.) The court may grant leave to amend at any stage of the proceeding, even “after commencement of trial.” (Id., § 576; see *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489.)

Pursuant to California Rules of Court, Rule 3.1324, a motion to amend a pleading must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(Cal. Rules of Court, rule 3.1324(a).)

A separate declaration must also accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.

(Id., subd. (b).)

B. Procedural Matters

The procedural requirements for Tacori's motion are satisfied. Tacori's motion includes a copy of its proposed FAXC and a red-lined version and chart identifying all proposed changes. These are attached to a declaration from Tacori's counsel that identify the amendments' effects, why they are necessary and proper, when relevant facts were discovered (some during discovery as recently as February 2026 (Andonian Decl., ¶ 17)), and the reason why the request was not made earlier (the Court's April ruling on Elite's demurrer (id., ¶ 18)).

C. Proposed Changes in First Amended Cross Complaint

Tacori proposes the following changes to its initial cross-complaint:

First, the proposed FAXC distinguishes between the Agencies for the first time by geography: it distinguishes Elite Model Management, LLC from Elite Model Management LA, LLC, and alleges the former, incorporated in Delaware with offices in Los Angeles, is not licensed as a talent agency in California; similarly, Tacori distinguishes between 1 Model Management LA, LLC and 1 Model Management, LLC, alleging the latter is a New York corporation not licensed as a talent agent in California. (Mot., Exh. 2 ("FAXC"), ¶¶ 6-9.)

(For clarity, the Court refers to the Agencies as “Elite DE”, “Elite LA”, “One Model NY”, and “One Model LA”, where necessary to distinguish between them.)

Tacori newly alleges that Kusez and Riley appointed Elite DE and One Model NY, respectively, as their attorneys-in-fact for purposes of Plaintiffs’ dealings with Tacori. (FAXC, ¶¶ 19-20.) It also alleges the Agencies (all four) negotiated Plaintiffs’ agreements for services with Su; Tacori was a third-party beneficiary of the contracts between Plaintiffs and Su; that according to those agreements, Su and/or the Agencies were responsible for ensuring Plaintiffs were timely paid; that Tacori paid Su, and Su paid the Agencies, as agreed; and that Tacori’s separate agreement with Su warranted that payment would be made according to all applicable laws. (Id., ¶¶ 23-33, 44.)

As discussed, Tacori maintains its third and fourth causes of action against Elite DE and One Model NY, despite the Court’s prior ruling on Elite’s demurrer. It omits Elite LA and One Model LA from those causes of action, ostensibly in compliance with the demurrer ruling. (Id., 8:22-23, 9:23-24).

Tacori’s new fifth cause of action, against Su and the Agencies, depends on a covenant arising from Tacori’s alleged agreement with Su (“Su Agreement”), which was “partially in writing, oral and implied in fact”. (Id., ¶ 58.) Tacori contends it may enforce the implied covenant as a third-party beneficiary of the Su Agreement. (Id., ¶ 60.) Tacori identifies a specific “implied term” in the Su Agreement, that “SU and the Agencies were to remit payment to Plaintiffs consistent with applicable laws”, including both relevant wage-and-hour laws and the Talent Agencies Act. (Id., ¶ 62.) As alleged, the Agencies were to be “paid directly” “[a]s Plaintiffs’ attorney[s]-in fact”, and then follow their obligations under the Talent Agencies Act, which govern payments from the Agencies to Plaintiffs. (Id., ¶ 65.) To comply with relevant laws, “[t]he timing of invoicing and collection by the Agencies would need to be well before the Photo Shoot”, but the Agencies failed to make such arrangements despite being “invested with wide discretion to arrange the date of the Photo Shoot, payment terms, method of payment, receipt of payment and ultimately disbursement to Plaintiffs.” (Id., ¶¶ 64-65.)

Tacori’s new sixth cause of action depends on duties it contends the Agencies owed under the Talent Agencies Act. Although captioned as an action for ordinary common-law negligence, it is in fact a claim for negligence per se, locating its relevant duty of care entirely within that statute. Tacori alleges the Agencies owed and breached several duties to Tacori arising from the Act, consistent with the Act’s purpose “to prevent improper persons from becoming artists’ managers and to regulate such activity for protection of the public.” (Id., ¶¶ 71-76.)

D. Discussion

In opposition to Tacori’s motion, One Model (both NY and LA) contends primarily that the proposed amendments are futile: that is, that Tacori cannot state a claim against the Agencies under any of the theories it proposes. (See Opp., 4:11-19 [“leave to amend is ordinarily granted liberally”, but should be denied “where the amended pleading could not withstand demurrer because no liability exists ... and no further amendment could cure the defect”].)

The Court agrees that Tacori’s amendments to the third and fourth causes of action are futile; they do not resolve deficiencies identified in the Agencies’ demurrers, and they contravene the Court’s orders on those demurrers. Whether or not the Agencies were licensed, Tacori does not allege the Agencies directly employed Plaintiffs. The Court’s ruling on the prior and instant demurrers does not rely entirely on the Agencies’ role as talent agencies. It also relies on Tacori’s failure to establish employer-employee obligations incumbent on the Agencies. Case law precludes an employer-employee relationship between agency and artist not based on license, but based on the nature of the relationship between them: that agencies provide a service to artists, not vice versa. (See *Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 391.) Elite DE and One Model LA’s alleged lack of licensing may raise other legal complications for them, but it does not render them jointly liable with Tacori as Plaintiffs’ employers. For the third and fourth causes of action, the motion is denied.

The proposed fifth and sixth causes of action, however, whether or not they are sufficiently pled, are not futile. Except in extreme or obvious cases, a motion for leave to amend is not the proper vehicle to litigate the sufficiency of a pleading. (See *Greenberg v. Equitable Life Assur. Society* (1973) 34 Cal.App.3d 994, 998 [abuse of discretion to deny amendment where “fair prior opportunity to correct” has not been given].)

The Court's ruling does not endorse Tacori's claims as sufficient, but defers the matter for a substantive challenge to its amended pleading. The Court grants the motion for the fifth and sixth causes of action.

IV. CONCLUSION

Cross-Complainant Tacori Enterprises' Motion for Leave to File a First Amended Cross-Complaint is GRANTED IN PART. Cross-Complainant is ordered to file a First Amended Cross-Complaint consistent with this Order (omitting the third and fourth causes of action) within 10 days of this ruling.

Cross-Complainant is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative ruling as the final order or take the matter off calendar at its discretion.